

Parties must appear.

12. 9:00 AM CASE NUMBER: L25-06376
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. DARRYL REED
***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS**
FILED BY: JEFFERSON CAPITAL SYSTEMS LLC
***TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings on October 17, 2025, with an accompanying Proof of Service. The Motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Defendant, in his Answer filed August 8, 2025, marked the box indicating that all of the statements of the Complaint are true.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$2,761.12 on a credit card account.

Defendant’s Answer admits that the statements in the Complaint are true.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. No costs or fees were specifically alleged, so to the extent that the Plaintiff’s Motion is a request for fees, that is denied without prejudice. Plaintiff can file a subsequent request on this issue.
2. Plaintiff shall file the Order.

13. 9:00 AM CASE NUMBER: L25-10978

CASE NAME: EMILIO RUBIO VS. WILLARD STARK

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Disposition

Upon review of Petition to Approve Compromise of Pending Action, which included medical records of the injury to the minor Plaintiff, the court approves the Compromise.

Plaintiff shall draw and file the Order approving the Compromise.

Moreover, the court approves the Order to Deposit Funds in the Blocked Account on behalf of the minor Plaintiff, as filed by Plaintiff on December 31, 2025.

14. 9:00 AM CASE NUMBER: MSL21-00864

CASE NAME: INVESTMENT RETRIEVERS VS. RIVAS

***HEARING ON MOTION IN RE: FOR ORDER IMPOSING TERMINATING SANCTION AGAINST
DEFENDANT FOR FAILURE TO OBEY ORDER COMPELLING RESPONSES**

FILED BY: INVESTMENT RETRIEVERS, INC.

TENTATIVE RULING:

Background

Plaintiff filed, on October 29, 2025, a Motion for an order imposing a terminating sanction against Defendant for failure to obey a court order compelling discovery responses.

The Motion is unopposed.

Analysis

The court has the discretion to order terminating sanctions if a misuse of the discovery process is found. CCP § 2023.030(c). CCP § 2030.290(c) and CCP § 2030.300(c) state in pertinent part: "If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010)."

The court has held that terminating sanctions have been appropriate when a respondent "tendered discovery responses that submitted no meaningful information, repeatedly ignored meet and confer letters, continued to parrot the same answers after two orders compelling it to give responses, and propounded no discovery of its own until faced with a motion for terminating sanctions." *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.*, 163 Cal. App. 4th 1093 (Cal. App. 3d Dist. 2008).